

The Court intends to set a hearing in this matter. An appearance by the mother and father is necessary to select a hearing date. The mother should be prepared to discuss whether the minor prefers to attend the hearing or submit a written declaration (Judicial Council Form MC-030).

ROBINSON, ET AL. VS. THE STATE OF CALIFORNIA, ET AL.

CASE NUMBER: 25CV-0208108

Tentative Ruling on Motion to Compel Production of Documents and Request for Special Sanctions: Plaintiffs seek an Order requiring Defendant, Helix Environmental Planning, Inc., to respond to Request for Production, Set One. Plaintiffs also seek monetary sanctions. Defendant does not oppose the motion to compel responses but does oppose monetary sanctions.

Plaintiffs' Request for Judicial Notice. Plaintiffs' request the Court take judicial notice of the Notice of Entry of Order filed on July 24, 2026, regarding Plaintiffs' prior motion to compel further responses and a transcript from the hearing date of June 8, 2026, regarding the motion to compel further responses. The request is granted pursuant to Evid. Code § 452(d).

Merits. A party has thirty days after service to respond to a Request for Production, Request for Admissions, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Plaintiffs have provided evidence that Defendant was served by email on May 27, 2026, with Plaintiffs' Request for Production, Set One. No responses were provided within the time required. Additionally, Plaintiffs' counsel sent an email to Defendant requesting responses without objections no later than July 3, 2026. Defendant does not dispute that responses have not been provided. Responses to Plaintiffs' Request for Production, Set One, are required.

Sanctions. Plaintiffs request monetary sanctions pursuant to CCP §§ 2031.300(c) and 2023.030(a). Sanctions are mandatory absent substantial justification or other circumstances that would make imposition of the sanctions unjust. Defendant has failed to show substantial justification for the delay in providing responses to the discovery request.

Plaintiffs request attorney fees for bringing this motion in the amount of \$875.00. The Court finds the hourly rate requested and time spent reasonable, with the exception of the time needed to attend the hearing on this motion. A substantially similar motion was filed regarding a separate defendant for the same hearing date and each motion requests an hour of time to attend the hearing. Two hours to attend the hearing is not reasonable. The Court will reduce this request by one half-hour. Sanctions will be imposed against Defendant in the amount of \$700.00.

Plaintiffs' Motion is **GRANTED**. Defendant Helix Environmental Planning, Inc. is ordered to provide verified discovery responses within fifteen (15) days of Notice of Entry of Order. Objections are waived. Plaintiffs are awarded \$700.00 in monetary sanctions, payable by

Defendant within 30 days of Notice of Entry of Order. A proposed order has been lodged and will be modified to reflect the Court's ruling.

Tentative Ruling on Motion to Compel Production of Documents and Request for Special Sanctions: Plaintiffs seek an Order requiring Defendant, Whitney Environmental Consulting, Inc., to respond to Request for Production, Set Two. Plaintiffs also seek monetary sanctions. Defendant does not oppose the motion to compel responses but does oppose monetary sanctions.

Plaintiffs' Request for Judicial Notice. Plaintiffs' request the Court take judicial notice of the Notice of Entry of Order filed on July 24, 2026, regarding Plaintiffs' prior motion to compel further responses and a transcript from the hearing date of June 8, 2026, regarding the motion to compel further responses. The request is granted pursuant to Evid. Code § 452(d).

Defendant's Request for Judicial Notice. Defendant requests the Court take judicial notice of the Declaration of William Sluss in support of Defendants Helix Environmental Planning, Inc. and Whitney Environmental Consulting, Inc.'s Opposition to Sanctions filed on June 8, 2026. The request is granted pursuant to Evid. Code § 452(d).

Merits. A party has thirty days after service to respond to a Request for Production, Request for Admissions, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Plaintiffs have provided evidence that Defendant was served by email on May 27, 2026, with Plaintiffs' Request for Production, Set Two. No responses were provided within the time required. Additionally, Plaintiffs' counsel sent an email to Defendant requesting responses without objections no later than July 3, 2026. Defendant does not dispute that responses have not been provided. The Court notes that Defendant argues it is not a proper defendant and should be dismissed because the corporation dissolved in December of 2019 and the statutory time to sue the former shareholders has lapsed. This issue has not been properly brought before the Court, therefore responses to Plaintiffs' Request for Production, Set Two, are required.

Sanctions. Plaintiffs request monetary sanctions pursuant to CCP §§ 2031.300(c) and 2023.030(a). Sanctions are mandatory absent substantial justification or other circumstances that would make imposition of the sanctions unjust. Defendant has failed to show substantial justification for the delay in providing responses to the discovery request.

Plaintiffs request attorney fees for bringing this motion in the amount of \$875.00. The Court finds the hourly rate requested and time spent reasonable, with the exception of the time needed to attend the hearing on this motion. A substantially similar motion was filed regarding a separate defendant for the same hearing date and each motion requests an hour of time to attend the hearing. Two hours to attend the hearing is not reasonable. The Court will reduce this request by one half-

hour. Sanctions will be imposed against Defendant in the amount of \$700.00.

Plaintiffs' Motion is **GRANTED**. Defendant Whitney Environmental Consulting, Inc. is ordered to provide verified discovery responses within fifteen (15) days of Notice of Entry of Order. Objections are waived. Plaintiffs are awarded \$700.00 in monetary sanctions, payable by Defendant within 30 days of Notice of Entry of Order. A proposed order has been lodged and will be modified to reflect the Court's ruling.

SHANNON VS. FCA US, LLC, ET AL.

CASE NUMBER: 25CV-0207315

Tentative Ruling on Motion to Compel Deposition: Defendant FCA US LLC and Steward Chrysler Dodge Jeep Ram dba Stewart Dealerships move for an order compelling Plaintiff Nicole Shannon to appear for and proceed with her deposition and to produce the documents described in the deposition notice. The Motion is properly noticed and is unopposed. CCP 2025.450(a) provides:

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

Here, Defendant has established proper service of a deposition notice to Plaintiff on June 11, 2026. No objections were served. Defendant has also established that on the noticed date, June 23, 2026, Plaintiff did not appear for the deposition and did not produce any documents. Defendant is entitled to the relief requested.

Sanctions are mandatory under CCP 2025.450(g)(1). A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiff requests sanctions of Defendant requests sanctions of \$3,275.10 consisting of 5.8 attorney hours at \$450 per hour, plus costs of \$60 for the filing fee and \$605.10 for the court reporter. This hourly rate is higher than the prevailing rate for attorneys of similar skill and experience in Shasta County. No evidence has been submitted that competent local counsel could not be retained. Therefore, the Court will award attorney fees at a rate of \$400 per hour. Hours will be reduced by 2, because no opposition was filed and no reply brief was needed. The costs will be awarded. Total sanctions are \$2,185.10.

The Motion to Compel is **GRANTED**. Sanctions of \$2,185.10 are imposed in favor of Defendants against Plaintiff. A proposed order has been lodged and will be modified.

SHANNON VS. FCA US, LLC, ET AL.

CASE NUMBER: 25CV-0207315

Tentative Ruling on Motion to Compel Initial Disclosures and for Sanctions: Plaintiff Nicole Shannon moves for an order compelling Defendant FCA US LLC to produce all documents required under Code of Civil Procedure section 871.26(h). Plaintiff also seeks sanctions of